

CHAPTER 103

An Act to amend the Parliament Act, 1911.

[16th December 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Commons, in this present Parliament assembled, in accordance with the provisions of the Parliament Act, 1911, and by authority of the same, as follows:—

Substitution
of references
to two sessions
and one year
for references
to three
sessions and
two years
respectively.
1 & 2 Geo. 5.
c. 13.

1. The Parliament Act, 1911, shall have effect, and shall be deemed to have had effect from the beginning of the session in which the Bill for this Act originated (save as regards that Bill itself), as if—

(a) there had been substituted in subsections (1) and (4) of section two thereof, for the words “in three successive sessions”, “for the third time”, “in the third of those sessions”, “in the third session”, and “in the second or third session” respectively, the words “in two successive sessions”, “for the second time”, “in the second of those sessions”, “in the second session”, and “in the second session” respectively; and

(b) there had been substituted in subsection (1) of the said section two, for the words “two years have elapsed” the words “one year has elapsed”:

Provided that, if a Bill has been rejected for the second time by the House of Lords before the signification of the Royal Assent to the Bill for this Act, whether such rejection was in the same session as that in which the Royal Assent to the Bill for this Act was signified or in an earlier session, the requirement of the said section two that a Bill is to be presented to His Majesty on its rejection for the second time by the House of Lords shall have effect in relation to the Bill rejected as a requirement that it is to be presented to His Majesty as soon as the Royal Assent to the Bill for this Act has been signified, and, notwithstanding that such rejection was in an earlier session, the Royal Assent to the Bill rejected may be signified in the session in which the Royal Assent to the Bill for this Act was signified.

Short title,
construction
and citation.

2.—(1) This Act may be cited as the Parliament Act, 1949.

(2) This Act and the Parliament Act, 1911, shall be construed as one and may be cited together as the Parliament Acts, 1911 and 1949, and accordingly subsection (1) of section four of the Parliament Act, 1911 (which specifies the words of enactment to be inserted in a Bill presented to His Majesty under that Act) shall have effect with the substitution of the words “the Parliament Acts, 1911 and 1949” for the words “the Parliament Act, 1911”.